



Appeal Decision

Site visit made on 14 July 2026

by Elaine Moulton BA (Hons) BPI MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10th September 2026

Appeal Ref: 6008083

108 Boaler Street, Liverpool L6 6AD

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Ravichandran against the decision of Liverpool City Council.
 - The application Ref is 25F/0345.
 - The development proposed is change of use of the ground floor (only) of the former Newsham Park Public House (*sui generis*) to a retail convenience store (use class E).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026, the Government published a new National Planning Policy Framework (the Framework)¹. This is a relevant material planning consideration of 'critical importance' in decision making. In respect of the main issues in this appeal, the Framework has not materially changed the assessment, and it has therefore not been necessary for me to consult the main parties upon it.

Main Issues

3. The main issues are:
 - Whether the proposed development would result in the unacceptable loss of a community facility; and
 - Whether the site is a suitable location for the proposed development, taking into consideration local and national policies

Reasons

Community facilities

4. The appeal site comprises a former public house located within a densely developed Primarily Residential Area.
5. Policy SP5 of the Liverpool Local Plan 2013-2033 (LP), adopted January 2022, seeks to prevent the loss of an existing community facility other than in specified circumstances. The supporting text explains that the policy seeks to protect existing community facilities that are valued by the local community.

¹ National Planning Policy Framework Plan-making and national decision-making policies August 2026

6. The public house has been closed for several years, is not listed as an Asset of Community Value, and the proposed development has generated no local objection. Collectively, these factors suggest that the appeal property is not currently valued by the local community in that use. I also note that another public house is located nearby on Boaler Street, with others within an easy walking distance. Consequently, the loss of the appeal property's use as a public house would not leave the local community without such a facility. Nevertheless, the loss of an existing community facility is only permissible under Policy SP5 if, amongst other things, it is surplus to requirements as it has been demonstrated that there is no current or future need or demand for the space, either in its current use or any alternative community use.
7. The parties agree that this requirement may be established through the marketing of the property, although they differ on what constitutes appropriate marketing. Whilst neither Policy SP5 nor its supporting text prescribes a specific marketing approach, Policy HC6 of the Framework provides relevant national policy guidance. It states that, where the loss of public houses is proposed on viability grounds, evidence should demonstrate that reasonable steps have been taken to market the property for its existing use, without success, for a period of at least 12 months.
8. Information relating to the appeal property was circulated to a significant number of local estate agents and the appellant indicates that, after 3 months, no interest was expressed in using the appeal property for any community facilities. However, as the Council notes, no substantive evidence has been provided to verify the outcome of this exercise, such as correspondence from the estate agents confirming that there was no market interest. Moreover, even if I were satisfied that this constituted an appropriate way to market the appeal property, it was undertaken for only three months, which falls significantly short of the 12-month period referred to in the Framework.
9. Accordingly, based on the evidence before me, it has not been demonstrated through an appropriate marketing exercise that there is no current or future need or demand for the appeal property, either for its former use or for an alternative community use. Consequently, Policy SP5 2 a) has not been satisfied.
10. The appellant states that the layout is tailored to use as a public house, which constrains its suitability for alternative community uses. However, no alterations to the layout are proposed to facilitate its use as a convenience store, which indicates that the building is capable of accommodating alternative uses without substantial modification. In the absence of compelling evidence to the contrary, I am not persuaded that the floorspace is unsuitable for an alternative community use, or that any necessary adaptation would be economically unviable.
11. Nor am I persuaded that the appeal property's location outside of a defined centre, or wider socio-economic changes, would prevent its future use as a community facility. Many such facilities continue to operate successfully within residential neighbourhoods. Moreover, although there are several churches and community centres nearby, this does not demonstrate that there is no reasonable prospect of the appeal property being occupied for an alternative community use. Consequently, Policy SP5 2 b) has not been satisfied.

12. Therefore, I conclude that the proposed development would result in an unacceptable loss of a community facility. As such, it conflicts with LP Policy SP5 which seeks to protect existing community facilities. It would also be contrary to the similar policy objectives of the Framework.

Suitable location

13. LP Policy SP6 establishes a sequential approach to retail development, requiring sites to be assessed in the order of in-centre sites first, then edge-of-centre sites, and, only as a last resort, out-of-centre locations. This approach is consistent with Policy TC3 of the Framework, which states that only if suitable sites in town centre or edge-of-centre locations are not available (or expected to become available within a reasonable period) should out of centre sites be considered.
14. As the appeal site lies outside a defined retail centre, a sequential test was submitted in support of the planning application. The Council is satisfied that it was appropriate for the assessment to consider only sites within the nearby Kensington Local Centre, and in the absence of substantive evidence to the contrary, I have no reason to disagree. However, the Council has raised concerns regarding the discounting of a property within the local centre on the basis that its available floorspace, measuring 66 square metres (m²), would be insufficient.
15. Whilst the unit is smaller than the floorspace that would be provided within the appeal building, the difference amounts to only 6m² and is therefore relatively limited. Moreover, limited information has been provided regarding the operational requirements of the proposed convenience store, and no objective evidence has been submitted to demonstrate that a reduction in floorspace of this scale would materially affect its viability or functionality.
16. Given the modest disparity in floorspace and the absence of robust evidence demonstrating why the alternative unit could not accommodate the proposed use, I cannot conclude that the appellant has applied the degree of flexibility in the consideration of issues such as format and scale that is required by Policy TC3.3 of the Framework. Accordingly, I am not satisfied that all suitable opportunities to locate the proposed use within a town centre or edge-of-centre location have been properly explored, and that the sequential test has been satisfied.
17. For these reasons, the site is not a suitable location for the proposed development as it would fail to comply with the sequential approach of LP Policy SP6. It would also be contrary to the similar requirements set out in Policy TC3 of the Framework.

Other Matters

18. The proposed convenience store would provide jobs, bring an under-utilised building into full use which would be beneficial to the character and appearance of the area, and would constitute investment in the local area. Such matters weigh in favour of the proposed development. Nevertheless, they are not sufficient to alter my conclusions on the main issues.
19. As there are stores within an easy walking distance of the site, I am not persuaded that the proposed development would reduce the need to travel.

Conclusion

20. The proposed development conflicts with the development plan when considered as a whole and there are no material considerations, either individually or in combination, that outweighs the identified harm and associated development plan conflict.
21. I therefore conclude that the appeal should be dismissed.

Elaine Moulton

INSPECTOR